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Submitter Information

Email: [REDACTED]
Organization: Uber Technologies, Inc.

General Comment

Please see attached comments on behalf of Uber Technologies, Inc.

Attachments

Uber Response to OSTP RFI AI Action Plan - March 2025

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Mr. Michael Kratsios
Office Science and Technology Policy
National Science Foundation
Executive Office of the President
Eisenhower Executive Office Building
1650 Pennsylvania Avenue
Washington, D.C. 20504

[Submitted electronically via email]

RE: Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

I. Introduction

Purpose of Response

Uber appreciates the opportunity to provide input on the development of President Trump's AI Action Plan. As an early adopter of artificial intelligence for enhancing mobility and delivery services, Uber understands the transformative potential of AI when deployed responsibly. AI is integral to optimizing transportation, improving marketplace efficiency, and ensuring the safety of both riders and drivers. However, a fragmented regulatory approach to AI risks stifling innovation, imposing unnecessary compliance burdens, and ultimately limiting the potential benefits of AI-driven technologies.

Uber is committed to harnessing AI to enhance efficiency, improve safety, and create a seamless experience for consumers, drivers, and merchants. And various authorities already contribute to that experience. The Uber platform is highly regulated across the globe, in order to provide consumer protection and help make every experience feel safe. These Uber-specific rules operate alongside industry-wide rules regulating non-discrimination, privacy, and other important protections that should focus any AI rules on *bona fide* regulatory needs.

This response outlines key priorities, including the need to avoid overregulating low-risk AI applications, address the growing patchwork of state laws, and advocate for cohesive federal guidance that provides clarity for businesses and consumers alike. A well-crafted national AI framework should protect against harm while maintaining flexibility to encourage responsible AI development and deployment.

Uber's Use of AI: Enhancing Efficiency and Safety

Artificial intelligence has contributed to Uber's platform for over a decade, playing a role in optimizing experiences for both earners and riders. AI helps process vast amounts of real-time data, allowing Uber to improve trip matching, enhance routing efficiency, and provide seamless user experiences. By leveraging AI, Uber has been able to refine how trips are assigned, reduce wait times, and improve traffic flow across its global network.

For drivers, AI-driven optimization enables smarter trip offers that factor in real-time conditions, past traffic patterns, and driver preferences, leading to more efficient earnings opportunities. AI-powered routing dynamically adjusts based on evolving road conditions, reducing delays and enabling faster trip completions. AI also plays a key role in dynamic pricing, helping balance supply and demand by adjusting incentives during peak times or major events. By making these adjustments in real-time, Uber ensures that the marketplace remains efficient, fair, and responsive to demand fluctuations.

For riders, AI enhances safety features, including trip monitoring systems that detect unusual events such as prolonged stops. This enables proactive interventions, ensuring that riders and drivers feel secure throughout their journeys. AI is also central to Uber's fraud detection systems, identifying and preventing potentially fraudulent activity in real time.

As AI plays an increasingly critical role in shaping mobility services, Uber remains committed to transparency and fairness in AI deployment. The company has invested in robust AI governance mechanisms, including dedicated teams that evaluate fairness, assess potential inaccuracies, and ensure accountability in AI-driven decisions. Additionally, Uber collaborates with external experts and stakeholders to refine its AI systems and ensure responsible deployment.

II. Addressing the Patchwork of State AI Regulations

The Emerging Patchwork of State AI Laws and the Need for Federal Leadership

The rapid evolution of AI has led to a surge in state-level AI legislation—with more than 700 AI-related bills introduced in state legislatures across the U.S. While well-intentioned, these efforts are resulting in a fragmented and inconsistent regulatory landscape which leads to compliance and interoperability challenges, particularly for companies that operate across multiple jurisdictions. But AI-powered platforms, by their very nature, operate across state lines and are eminently ripe for federal regulation.

For example:

- More than a dozen states have introduced bills that impose different standards on AI-driven decision-making to prevent algorithmic discrimination. However, these laws define "high-risk" AI differently and significantly vary in their approach to addressing risk mitigation and governance, creating overlapping and conflicting compliance requirements.

- The "developer vs. deployer" problem: Some bills would require a company like Uber, which both develops and deploys AI, to treat itself as two separate entities, resulting in an unnecessary compliance cycle where internal teams are forced to exchange paperwork and meet redundant administrative requirements.

A fragmented AI regulatory landscape not only hampers innovation but also creates barriers to market entry, particularly for smaller companies and startups that lack the legal resources to navigate a complex and duplicative compliance environment. Without federal intervention, businesses will be forced to adapt to an unpredictable patchwork of regulations, leading to higher operational costs and reduced AI adoption.

A federal AI framework should provide clear and uniform regulatory guidelines, ensuring that businesses do not have to navigate conflicting state laws. AI governance should:

- Preempt inconsistent state AI laws to prevent a fragmented compliance landscape.
- Provide clear terminology and risk-based classification to differentiate between low-risk AI applications (e.g., route optimization) and high-risk applications (e.g., biometric identification in hiring).
- Ensure that regulations are narrowly tailored to address real risks without imposing undue burdens on businesses or consumers.

In the absence of this federal framework, overregulation could hinder operational efficiencies and compromise safety, without clear consumer benefits.

III. A Call for a True Risk-Based Approach to Regulation

A smart regulatory framework should support transparency without overburdening businesses. AI transparency measures should be reasonable and aligned with actual risk levels, rather than broad mandates that slow down development. In this respect, Uber recommends that a federal approach proceed from the following key premises:

- **Rely on existing background regulatory protections**, such as those general rules on non-discrimination, consumer protection, and privacy.
- **Make genuine risk-based distinctions**, including an appreciation that some AI applications involve such *de minimis* risk as to fall below the need for any special regulation.

On relying on existing background regulatory protections: AI is a tool, like any other tool. Current laws, rules, and regulations already prohibit unlawful conduct, including misconduct facilitated by AI. These existing legal frameworks, which are supported by well-established regulatory and enforcement mechanisms, aim to address and prevent prohibited behavior, regardless of the method used to carry it out. In many instances, current legislation already provides an effective means of ensuring AI's safe and responsible use. Additional regulations

should only be considered where clear gaps in existing regulations have been identified. Moreover, additional regulations on topics such as explainability should be contextual and not onerous for businesses, especially considering that companies should not be required to give consumers information that they simply cannot use.

On making genuine, risk-based distinctions: AI has given rise to public imagination. But the risks attendant in some use cases—such as health care, national security, the energy sector, and voting integrity—clearly differ from the potential trivial uses such as offering shopping recommendations, or routing suggestions. And just as the risks differ, so too should the policy remedies necessarily differ. Many AI applications in the mobility industry are low-risk and do not involve high-stakes decision making (e.g. predictive demand modeling). If AI usage presents a clearly trivial risk, it should not be subject to special AI rules. As such, any federal framework should establish a *de minimis* significance threshold, below which any regulatory burden would not apply at all.

When developing new AI regulations, policymakers should take a measured approach to governance—one that is risk-based, adaptable to technological advancements, and conducive to innovation. Any AI-specific laws or regulations should target clear gaps in existing law that present significant risks to individuals, helping address AI-related harms without stifling progress.

IV. Conclusion

Uber supports thoughtful AI governance that promotes innovation while addressing real risks. By aligning AI governance at the federal level, policymakers can eliminate regulatory uncertainty, reduce compliance costs, and foster responsible AI development. This federal approach is critical to avoiding regulatory fragmentation and ensuring the United States remains a leader in AI development.

Thank you for your consideration of this response to the RFI. We look forward to working together with the Administration as it finalizes next steps on the AI Action Plan.

Sincerely,

Javier Correoso
Head of Federal Affairs
Uber Technologies, Inc.



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